ORDINANCE NO. 548

AN ORDINANCE FIXING RATES FOR WATER AND SEWER SERVICES RENDERED BY THE WATER AND SEWER SYSTEM OF THE CITY OF RECTOR, ARKANSAS; AND PRESCRIBING OTHER MATTERS RELATING THERETO.

WHEREAS, the City of Rector, Arkansas (the "City") owns and operates water and sewer facilities, which water and sewer facilities are operated as one interrelated municipal undertaking (the "System"); and

WHEREAS, it is necessary for the City to increase the rates to be charged for the services of the System in order to finance improvements to the System, which are necessary to make the services thereof adequate for the needs of the City;

NOW, THEREFORE, BE IT ORDAINED by the City Council of the City of Rector, Arkansas:

Section 1. That the following monthly rates and charges which the City Council hereby finds and declares are fair, reasonable and minimum rates to be charged for water services be, and they are hereby, fixed as rates to be rendered by the System.

Monthly Water Rates. All water charges shall be based on water consumption and the amount to be paid by each customer shall be computed on the basis of the following schedule of rates:

RESIDENTIAL WATER CUSTOMERS

INSIDE CITY

	Effective June 1, 2011	Effective June 1, 2012	Effective June 1, 2013	Effective June 1, 2014
For the first 2,000 gallons of water consumption per month, or portion thereof	$11.84 (minimum)	$12.67 (minimum)	$13.30 (minimum)	$13.97 (minimum)
For the next 4,000 gallons of water consumption per month, or portion thereof	3.02 per 1,000 gallons	3.23 per 1,000 gallons	3.39 per 1,000 gallons	3.56 per 1,000 gallons
For the next 4,000 gallons of water consumption per month, or portion thereof	1.79 per 1,000 gallons	1.92 per 1,000 gallons	2.01 per 1,000 gallons	2.11 per 1,000 gallons
For all water consumption n excess of 10,000 gallons	1.64 per 1,000 gallons	1.75 per 1,000 gallons	1.84 per 1,000 gallons	1.93 per 1,000 gallons

OUTSIDE CITY

	Effective June 1, 2011	Effective June 1, 2012	Effective June 1, 2013	Effective June 1, 2014
For the first 2,000 gallons of water consumption per month, or portion thereof	$19.74 (minimum)	$21.12 (minimum)	$22.18 (minimum)	$23.29 (minimum)
For the next 4,000 gallons of water consumption per month, or portion thereof	5.26 per 1,000 gallons	5.63 per 1,000 gallons	5.91 per 1,000 gallons	6.21 per 1,000 gallons
For the next 4,000 gallons of water consumption per month, or portion thereof	3.35 per 1,000 gallons	3.58 per 1,000 gallons	3.76 per 1,000 gallons	3.95 per 1,000 gallons
For all water consumption in excess of 10,000 gallons	3.07 per 1,000 gallons	3.28 per 1,000 gallons	3.45 per 1,000 gallons	3.62 per 1,000 gallons

COMMERCIAL WATER CUSTOMERS

	Effective June 1, 2011	Effective June 1, 2012	Effective June 1, 2013	Effective June 1, 2014
For the first 2,000 gallons of water consumption per month, or portion thereof	$15.45 (minimum)	$16.53 (minimum)	$17.36 (minimum)	$18.23 (minimum)
For the next 4,000 gallons of water consumption per month, or portion thereof	3.32 per 1,000 gallons	3.55 per 1,000 gallons	3.73 per 1,000 gallons	3.92 per 1,000 gallons
For the next 4,000 gallons of water consumption per month, or portion thereof	2.00 per 1,000 gallons	2.14 per 1,000 gallons	2.25 per 1,000 gallons	2.36 per 1,000 gallons
For all water consumption in excess of 10,000 gallons	1.85 per 1,000 gallons	1.98 per 1,000 gallons	2.08 per 1,000 gallons	2.18 per 1,000 gallons

INDUSTRIAL WATER CUSTOMERS

	Effective June 1, 2011	Effective June 1, 2012	Effective June 1, 2013	Effective June 1, 2014
For the first 2,000 gallons of water consumption per month, or portion thereof	$15.45 (minimum)	$16.53 (minimum)	$17.36 (minimum)	$18.23 (minimum)
For the next 4,000 gallons of water consumption per month, or portion thereof	3.32 per 1,000 gallons	3.55 per 1,000 gallons	3.73 per 1,000 gallons	3.92 per 1,000 gallons
For the next 4,000 gallons of water consumption per month, or portion thereof	2.00 per 1,000 gallons	2.14 per 1,000 gallons	2.25 per 1,000 gallons	2.36 per 1,000 gallons
For all water consumption in excess of 10,000 gallons	1.09 per 1,000 gallons	1.17 per 1,000 gallons	1.22 per 1,000 gallons	1.29 per 1,000 gallons

Section 2. That the following monthly rates and charges which the City Council hereby finds and declares are fair, reasonable and minimum rates to be charged for sewer services be, and they are hereby, fixed as rates to be rendered by the System.

Monthly Sewer Rates. All sewer charges shall be based on water consumption and the amount to be paid by each customer shall be computed on the basis of the following schedule of rates:

RESIDENTIAL SEWER CUSTOMERS

INSIDE CITY

	Effective June 1, 2011	Effective June 1, 2012	Effective June 1, 2013	Effective June 1, 2014
For the first 2,000 gallons of water consumption per month, or portion thereof	$8.88 (minimum)	$9.50 (minimum)	$9.98 (minimum)	$10.48 (minimum)
For the next 4,000 gallons of water consumption per month, or portion thereof	2.27 per 1,000 gallons	2.42 per 1,000 gallons	2.54 per 1,000 gallons	2.67 per 1,000 gallons
For the next 4,000 gallons of water consumption per month, or portion thereof	1.34 per 1,000 gallons	1.44 per 1,000 gallons	1.51 per 1,000 gallons	1.58 per 1,000 gallons
For all water consumption in excess of 10,000 gallons	1.23 per 1,000 gallons	1.32 per 1,000 gallons	1.38 per 1,000 gallons	1.45 per 1,000 gallons

OUTSIDE CITY

	Effective June 1, 2011	Effective June 1, 2012	Effective June 1, 2013	Effective June 1, 2014
For the first 2,000 gallons of water consumption per month, or portion thereof	$14.81 (minimum)	$15.84 (minimum)	$16.63 (minimum)	$17.47 (minimum)
For the next 4,000 gallons of water consumption per month, or portion thereof	3.95 per 1,000 gallons	4.22 per 1,000 gallons	4.43 per 1,000 gallons	4.65 per 1,000 gallons
For the next 4,000 gallons of water consumption per month, or portion thereof	2.51 per 1,000 gallons	2.69 per 1,000 gallons	2.82 per 1,000 gallons	2.96 per 1,000 gallons
For all water consumption in excess of 10,000 gallons	2.30 per 1,000 gallons	2.46 per 1,000 gallons	2.59 per 1,000 gallons	2.72 per 1,000 gallons

COMMERCIAL SEWER CUSTOMERS

	Effective June 1, 2011	Effective June 1, 2012	Effective June 1, 2013	Effective June 1, 2014
For the first 2,000 gallons of water consumption per month, or portion thereof	$11.59 (minimum)	$12.40 (minimum)	$13.02 (minimum)	$13.67 (minimum)
For the next 4,000 gallons of water consumption per month, or portion thereof	2.49 per 1,000 gallons	2.66 per 1,000 gallons	2.80 per 1,000 gallons	2.94 per 1,000 gallons
For the next 4,000 gallons of water consumption per month, or portion thereof	1.50 per 1,000 gallons	1.61 per 1,000 gallons	1.69 per 1,000 gallons	1.77 per 1,000 gallons
For all water consumption in excess of 10,000 gallons	1.39 per 1,000 gallons	1.48 per 1,000 gallons	1.56 per 1,000 gallons	1.64 per 1,000 gallons

INDUSTRIAL SEWER CUSTOMERS

	Effective June 1, 2011	Effective June 1, 2012	Effective June 1, 2013	Effective June 1, 2014
For the first 2,000 gallons of water consumption per month, or portion thereof	$11.59 (minimum)	$12.40 (minimum)	$13.02 (minimum)	$13.67 (minimum)
For the next 4,000 gallons of water consumption per month, or portion thereof	2.49 per 1,000 gallons	2.66 per 1,000 gallons	2.80 per 1,000 gallons	2.94 per 1,000 gallons
For the next 4,000 gallons of water consumption per month, or portion thereof	1.50 per 1,000 gallons	1.61 per 1,000 gallons	1.69 per 1,000 gallons	1.77 per 1,000 gallons
For all water consumption in excess of 10,000 gallons	.82 per 1,000 gallons	.87 per 1,000 gallons	.92 per 1,000 gallons	.96 per 1,000 gallons

Section 3. That the provisions of this Ordinance are separable and if a section, phrase or provision shall be declared invalid, such declaration shall not affect the validity of the remainder of the Ordinance.

Section 4. That all ordinances and resolutions and parts thereof in conflict herewith are hereby repealed to the extent of such conflict.

PASSED: March 21, 2011.

APPROVED:

G. David Sweeney
Mayor

ATTEST:

Lowell D. Peterson
City Recorder

(SEAL)

CERTIFICATE

The undersigned, City Recorder of the City of Rector, Arkansas hereby certifies that the foregoing pages are a true and perfect copy of Ordinance No. 548, adopted at a Special session of the City Council of the City of Rector, Arkansas, held at the regular meeting place in said City at 6:00 o'clock p.m., on the 21st day of March, 2011, and that the Ordinance is of record in Ordinance Record Book No. —, Page —, now in my possession.

GIVEN under my hand and seal on this 21st day of March, 2011.

Terri D. McKenzie
City Recorder

(SEAL)